

Calendar Line 8**Case Name:** *Jason Adair vs Elisity, Inc.***Case No.:** 25CV476583

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One, and for Monetary Sanctions

Timeliness

The first of five Plaintiff's motions is set for September 2, 2026. As to the present matter, Defendant filed its Opposition on August 24, 2026. The Opposition therefore was not filed within the time prescribed by Code of Civil Procedure section 1005(b), which requires opposition papers to be served and filed at least nine court days before the hearing.

California Rules of Court, rule 3.1300(d), provides that the Court has discretion to refuse to consider a late-filed paper. The Court notes Defendant's failure to comply with the statutory filing deadline. Nevertheless, because the Opposition was filed only two court days late and because the Court can address the issues raised without prejudice to Plaintiff, the Court exercises its discretion to consider the Opposition.

The Court therefore reaches the merits of the motion.

Defendant's Anticipated Motion to Compel Arbitration

Defendant argues that this action is pending in the wrong forum because Plaintiff's claims are subject to binding arbitration. Defendant's counsel states in a declaration executed August 24, 2026, that Defendant "is filing a Motion to Compel Arbitration and Stay Proceedings."

As of September 1, 2026, however, Defendant has not filed a motion to compel arbitration (nor have they made a reservation on the court's scheduling portal.) The Court therefore has no arbitration motion before it and has not been asked to determine whether a valid and enforceable arbitration agreement exists, whether Plaintiff's claims fall within its scope, or whether these proceedings should be stayed. Defendant's stated intention to file a motion to compel arbitration does not, by itself, stay discovery or otherwise relieve Defendant of its present discovery obligations. Nor has Defendant obtained an order staying these proceedings.

Accordingly, the Court declines to defer or deny Plaintiff's discovery motion based upon Defendant's anticipated arbitration motion.

Defendant's Purported Supplemental Responses

Defendant asserts, without waiving arbitration, that it voluntarily served verified substantive supplemental responses on February 12, 2026. Those responses, however, concern the four other discovery motions presently set for hearing on September 4, 2026, and do not address the Special Interrogatories that are the subject of Plaintiff's September 2 motion.

Accordingly, the February 12, 2026 supplemental responses do not moot the present motion.

To the extent Defendant contends that it has otherwise served supplemental responses to the Special Interrogatories at issue here, Defendant has not demonstrated that such responses fully resolve the deficiencies identified in Plaintiff's motion.

Motion to Compel Further Responses

Code of Civil Procedure section 2030.300 authorizes a party to move for a further response to interrogatories where the responding party has provided an answer that is incomplete or evasive, or where an objection is without merit or too general. The Court finds that Plaintiff has established good cause for the requested discovery and that further responses are warranted.

Accordingly, Plaintiff's motion to compel further responses to the Special Interrogatories, Set One, is GRANTED.

Defendant shall serve further verified responses to the interrogatories identified in Plaintiff's motion, without objections unless a legally valid objection applies to the particular interrogatory, within 20 days of service of notice of entry of this order.

Monetary Sanctions

Plaintiff requests monetary sanctions based on four hours of attorney time at an hourly rate of \$900. The Court understands that the four-hour request encompasses the preparation of all four pending discovery motions, rather than this motion alone.

Code of Civil Procedure section 2030.300(d) provides for monetary sanctions against a party or attorney who unsuccessfully opposes a motion to compel further responses, absent substantial justification or other circumstances making sanctions unjust. The Court finds that Defendant was not substantially justified in opposing the motion on the grounds asserted and finds an award of sanctions appropriate here. Given the nature and scope of this particular motion, and the overlapping issues among the discovery motions, the Court finds 1.5 hours to be a reasonable amount of attorney time attributable to this motion. At the requested rate of \$900 per hour, the reasonable amount of sanctions is therefore \$1,350.

Accordingly, Plaintiff is awarded \$1,350 in monetary sanctions, payable by Defendant and/or Defendant's counsel, jointly and severally, within 30 days of service of notice of entry of this order.

6. September 4, 2026 Discovery Motions

The Court is aware that four additional discovery motions are presently set for hearing on September 4, 2026.

Defendant has represented that it intends to file a motion to compel arbitration and stay these proceedings. If Defendant intends to seek a stay of the pending discovery matters based upon arbitration, Defendant should file and serve its motion to compel arbitration and request for stay *immediately*.

The Court will consider the procedural posture of the case, including any properly filed motion to compel arbitration and request for stay, in determining how to proceed with the September 4 discovery matters. Nothing in this ruling expresses any view concerning the merits of any future motion to compel arbitration or request for stay.

DISPOSITION

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One, is GRANTED.

Defendant shall serve further verified responses as ordered above within 20 days of service of notice of entry of this order.

Plaintiff is awarded \$1,350 in monetary sanctions, payable by Defendant and/or Defendant's counsel, jointly and severally, within 30 days of service of notice of entry of this order.

Plaintiff to prepare the final order, accompanied by the necessary Forms EFS-020, within 7 days of the date of the hearing.

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Calendar line 9**Case Name:** *Deepak Jariwala v FCA US LLC***Case No.:** 26CV487410

Plaintiff Deepak Jariwala's Motion to Enforce Code of Civil Procedure section 871.26

Background

Plaintiff filed this Song-Beverly Consumer Warranty Act action on February 17, 2026, concerning a 2024 Jeep Wrangler 4xe. Defendant FCA US LLC filed its Answer on April 1, 2026. Before filing suit, Plaintiff requested that FCA repurchase the Subject Vehicle. Plaintiff made that request on January 6, 2026, and FCA agreed to repurchase the vehicle on January 12, 2026.

Section 871.26 applies to this action. Within 60 days after the filing of an answer or other responsive pleading, the statute requires the parties, without awaiting a discovery request, to provide the initial disclosures and documents specified in subdivisions (f), (g), and (h). (Code Civ. Proc., § 871.26, subd. (b).) The 60-day period following FCA's April 1, 2026 Answer expired on May 31, 2026, a Sunday; therefore, the production deadline was June 1, 2026.

Among the documents required to be produced by the manufacturer are "[w]arranty policies and procedure manuals" (§ 871.26, subd. (h)(12)) and, "[i]f a pre-suit restitution or replacement request is made," the manufacturer's written statement of the policies and procedures used to evaluate customer requests for restitution or replacement pursuant to Lemon Law claims (§ 871.26, subd. (h)(15)).

On May 29, 2026, FCA produced numerous documents concerning the Subject Vehicle, including repair-order detail reports, warranty claims records, the owner's manual, warranty information booklet, communications between Plaintiff and FCA, technical service bulletins, and applicable recalls. FCA did not, however, produce the warranty policies and procedure manuals or the written statement of policies and procedures described in subdivisions (h)(12) and (h)(15).

Instead, FCA provided Plaintiff with a proposed protective order and advised that the proposed order would apply to, among other things, its Warranty Administration Manual, Dealer Policy Manual, and Customer Assistance Center Policies and Procedures. Plaintiff declined to stipulate to the proposed protective order. FCA did not obtain a court order permitting it to withhold the documents before the June 1 deadline.

Plaintiff filed this motion on June 2, 2026. FCA filed an Opposition on August 20, 2026, and Plaintiff filed a Reply on August 26, 2026.

Analysis

Section 871.26(b) establishes a mandatory initial-disclosure obligation. It provides that, within 60 days after the filing of the answer or other responsive pleading, the parties "shall, without awaiting a discovery request," provide the disclosures and documents identified in the statute.